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Case Number: 25NNCV04373 Hearing Date: August 6, 2026 Dept: T

David Mallchok, et al. vs. Building Solution Consulting, LLC, et al.

Motion for Attorney Fees and Costs

Moving Party: Cross-Defendants David Mallchok and Shelley Mallchok

Responding Party: Cross-Complainant Building Solution Consulting, LLC

Tentative Ruling: Grant

BACKGROUND

On November 24, 2025, Cross-Complainant Building Solution Consulting, LLC ("Cross-Complainant" or "BSC") filed a first amended cross-complaint ("FACC"), alleging the following causes of action: (1) breach of contract; (2) common counts; (3) foreclose a mechanics lien; (4) fraud; and (5) defamation.

On January 23, 2026, Cross-Defendants David Mallchok and Shelley Mallchok ("Cross-Defendants") filed a special motion to strike the defamation cause of action.

On May 7, 2026, after hearing oral argument and taking the matter under submission, the Court issued a ruling granting the special motion to strike. (Min. Order, 5/7/26.)

On July 6, 2026, Cross-Defendants filed the instant motion to recover \$229,328.83 in total attorney fees and costs, as comprised of \$112,825.00 in attorney fees, with a fee enhancement of 2.0 applied to these fees, and \$3,678.83 in costs. Cross-Defendants also state in their notice of motion that the requested fees and costs reflect the combined amount of fees and costs sought for both the instant action and the related action entitled Richard Shoop, et al. vs. Building Solution Consulting, LLC, et al., bearing Case No. 25NNCV04385 (the "Related Action").

Cross-Complainant opposes, and Cross-Defendants reply.

MOVING PARTY POSITION

Cross-Defendants argue that, as the prevailing parties in the anti-SLAPP proceedings, they are entitled to seek recovery of their attorney fees and costs, including the fee motion fees, and that the lodestar method supports both the underlying fee amount sought and the application of a 2.0 multiplier to this amount as a fee enhancement.

OPPOSITION

Cross-Complainant contends that a reasonable total award for both this action and the Related Action would be \$25,000.00, as the anti-SLAPP motion presented straightforward legal issues that did not require counsel to expend hundreds of hours of work, and as the anti-SLAPP motion in this action and the Related Action were substantially duplicative. Cross-Complainant also contends (1) that Cross-Defendants are seeking to twice for the same work, (2) that counsel's stated hours of work are not reliable and require further scrutiny, (3) that Cross-Complainant staffed the matter excessively, and (4) that the claimed hours are facially excessive.

Cross-Complainant further contends that Cross-Defendants' requested lodestar multiplier is entirely unsupported by the record and that a reasonable fee would be a small fraction of the amount requested given all of the aforementioned circumstances.

REPLY

Cross-Defendants respond that Cross-Complainant's opposition misrepresents the nature of the award requested by Cross-Defendants and that the 193 combined hours spent preparing the anti-SLAPP motion for both actions were reasonable given the complexity of the issues and scope of Cross-Complainant's defamation claims against them, as well as the contingent nature of the representation. Cross-Defendants further respond that the submitted declarations are sufficient to support the requested fee amount and that the fee enhancement is proper given aforementioned complexity and scope. Cross-Defendants finally note that Cross-Complainant did not contest the requested costs or the fees sought in connection with preparing their reply brief.

ANALYSIS

I. Legal Standard

Unless otherwise excepted, "a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc. § 425.16, subd. (c)(1).) The request for fees may be filed as a subsequent noticed motion. (*Carpenter v. Jack in the Box Corp.*, 2007) 151 Cal.App.4th 454, 460–461.)

In seeking fees, prevailing defendants bear "the burden of establishing their entitlement to attorney fees in connection with their anti-SLAPP motions, including the reasonable amount of those fees." (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 486 ("Lunada").)

"[T]he court may require [a] defendant[] to produce records sufficient to provide 'a proper basis for determining how much time was spent on particular claims.'" [Citation.] The court also may properly reduce compensation on account of any failure to maintain appropriate time records. [Citation.] [Citation.] The evidence should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended. [Citation.]" (*Lunada*, supra, 230 Cal.App.4th at p. 486.)

II. Discussion

A. Entitlement to Attorney Fees

Under Code of Civil Procedure section 425.16(c), “an award of attorney fees to a prevailing defendant on an anti-SLAPP motion is mandatory.” (Marshall v. Webster (2020) 54 Cal.App.5th 275, 285.) This fee award “may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1141.)

Here, Cross-Defendants submit the declarations of their counsel, attorneys Joseph P. Brent, Kipp Mueller, and Zahra Parekh, as evidence establishing their entitlement to fees. This evidence reflects work expended by counsel on the anti-SLAPP motion and this fee motion. (Brent Decl. ¶¶ 4–10; Mueller Decl. ¶¶ 4–9; Parekh Decl. ¶¶ 4–9.)

Accordingly, the Court finds that Cross-Defendants have provided sufficient evidence to establish their entitlement to attorney fees. (Lunada, supra, 230 Cal.App.4th at pp. 487–488 [“A defendant, however, can carry its burden of establishing its entitlement to attorney fees by submitting a declaration from counsel instead of billing records or invoices.”].)

Thus, as Cross-Defendants prevailed on their anti-SLAPP motion, and as there is sufficient evidence establishing Cross-Defendants’ entitlement to fees, the Court shall consider whether the fees sought by Cross-Defendants are reasonable.

B. Reasonableness of Fee Amount

Cross-Defendants seek \$112,825.00 in combined attorney fees for the instant action and the Related Action, as their anti-SLAPP motion was substantively identical to the motion filed by Cross-Defendants Richard Shoop and Marla Peppers who also prevailed in the Related Action.

This total fee amount is calculated based on the following hourly rates and hour of work attributed to each of their counsel: (1) \$68,600.00 for Joseph P. Brent, as calculated by applying his \$700.00 hourly rate to 98 total hours of work; (2) \$24,725.00 for Kipp Mueller, as calculated by applying his \$575.00 hourly rate to 43 total hours of work; and (3) \$19,500.00 for Zahra Parekh, as calculated by applying her \$375.00 hourly rate to 52 total hours of work. (Brent Decl. ¶¶ 4–10; Mueller Decl. ¶¶ 4–9; Parekh Decl. ¶¶ 4–9.)

In calculating the fee amount to award under the anti-SLAPP statute, trial courts use the “lodestar” method. (Marshall, supra, 54 Cal.App.5th at p. 285.) Under the lodestar method, the trial court “tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.” (Id. [quoting Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.]

Thus, the Court will consider the reasonableness of the \$112,825.00 fee amount sought by Cross-Defendants through application of the lodestar method.

1. Reasonableness of Hourly Rate

The lodestar calculation starts “with a determination of the ‘reasonable hourly rate,’ i.e., the rate ‘prevailing in the community for similar work.’” (Marshall, supra, 54 Cal.App.5th at p. 285 [citing PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.]) As a general rule, the “relevant ‘community’ is that where the court is located.” (Id. [quoting Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71.]

In support of their hourly rates, counsel for Cross-Defendants each attest that their rates are commensurate with their experience, skill, litigation background, and the rates charged by attorney of comparable experience in California, including

the Los Angeles and San Francisco communities of practice. (Brent Decl. ¶¶ 11–16; Mueller Decl. ¶¶ 10–12; Parekh Decl. ¶¶ 10–14.) The Court also notes that Cross-Complainant does not appear to challenge the reasonableness of these rates in opposing the instant motion. Accordingly, the Court finds that Cross-Defendants sufficiently demonstrated that the hourly rates charged by their counsel are reasonable and commensurate with rates charged by attorneys of comparable experience in their community of practice.

Thus, the Court finds these rates to be reasonable.

2. Reasonableness of Hours Expended

“Section 425.16, subdivision (c), is intended to compensate a defendant for the expense of responding to a SLAPP suit.” *Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 22 (citing *Robertson v. Rodriguez* (1995) 36 Cal.App.4th 347, 362.) To that end, this subdivision “is broadly construed so as to effectuate the legislative purpose of reimbursing the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit.” (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 446.)

Here, Cross-Defendants seek recovery of \$112,825.00 in attorney fees based on 193 total hours of billed and anticipated work performed by attorneys Brent, Mueller, and Parekh. Based on the declarations, the total claimed hours of work expended by these attorneys in connection with both the anti-SLAPP motion and fee motion in the instant action and the Related Action are as follows: (1) \$57,500, reflecting 95 hours of work expended on preparing the moving papers and supporting evidence for the anti-SLAPP motion; (2) \$6,725.00, reflecting 12 hours of work expended on reviewing Cross-Complainant’s opposition papers and objections; (3) \$30,750, reflecting 55 hours of work expended on preparing the reply briefs and responses to objection; (4) \$2,100.00, reflecting 3 hours of work expended on preparing and appearing at the hearing for the anti-SLAPP motions; (5) \$12,900.00, reflecting 22 hours of work expended on preparing the fee motions; and (6) \$2,850.00, reflecting 6 hours of anticipated work for the preparation of the reply briefs. (Brent Decl. ¶¶ 5–11; Mueller Decl. ¶¶ 5–10; Parekh Decl. ¶¶ 5–10.)

In contesting the reasonableness of these hours, Cross-Complainant misguidedly argues that the substantive overlap between the anti-SLAPP and fee motions filed in this action and the Related Action resulted in duplicative work and efficiencies not reflected by the claimed hours of expended work, despite the fact that Cross-Defendants clearly stated in their notice of motion that \$112,825.00 represents the combined fee for both actions. As the supporting declarations of their counsel also make clear that these hours applied to both actions, there is no evidence demonstrating that Cross-Complainants improperly seek double recovery of the same hours of expended work. (Brent Decl. ¶¶ 5–11; Mueller Decl. ¶¶ 5–10; Parekh Decl. ¶¶ 5–10.)

Moreover, as addressed above, “[i]t is not necessary to provide detailed billing timesheets to support an award of attorney fees under the lodestar method.” (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1324.) “Declarations of counsel setting forth the reasonable hourly rate, the number of hours worked and the tasks performed are sufficient.” (*Ibid.*) Thus, the lack of billing records does not alone render the claimed hours of work unreasonable or warrant heightened scrutiny, as Cross-Complainant appears to suggest.

Nevertheless, in reviewing the supporting declarations Cross-Defendants’ counsel, as well as the papers and evidence submitted by the parties in the underlying anti-SLAPP motion and the instant fee motion, the Court finds that claimed hours of work are facially excessive. In particular, as it appears that attorney Parekh was the individual tasked with drafting the anti-SLAPP motion, and as it further appears that attorneys Brent and Mueller only assisted with this drafting process, the estimated 75 total hours of work expended by Brent and Mueller in providing Parekh with this assistance, reviewing the available evidence, and preparing the submitted evidence is clearly excessive given the nature and complexity of the issues addressed in the anti-SLAPP motion and the evidence relied on therein. (Brent Decl. ¶¶ 4–5; Mueller Decl. ¶¶ 4–5; Parekh Decl. ¶¶ 4–5.) Although the Court acknowledges that preparation of this evidence may have required review of vaster array of documents, this excess is highlighted by the apparent fact that nearly half of the pages comprising Cross-Defendants’ compendium of evidence consisted entirely of lines of HTML source code offered by Cross-Defendants’ forensics expert, among other evidence that did not ultimately effect the Court’s ruling in granting the anti-SLAPP motion. Therefore, given the foregoing, the Court finds that a reduction of 20 hours for attorney Brent and 7 hours for attorney Mueller is warranted at their

respective hourly rates from their estimated time expended on the preparation of the anti-SLAPP motion, resulting in total reduction of \$18,025.00.

Likewise, in light of the arguments and objections that were raised and addressed across the opposition and reply papers filed in support of the anti-SLAPP motion, as well as the amount of time attributed by each attorney in their respective declarations to completing the seemingly overlapping tasks concerning these papers, the Court finds that the total estimated time of 67 hours spent by counsel in reviewing the opposition, preparing a reply brief, and respond to objections is facially excessive. (Brent Decl. ¶¶ 6–7; Mueller Decl. ¶¶ 6–7; Parekh Decl. ¶¶ 6–7.) Accordingly, the Court finds that a reduction of 7 hours for attorney Brent, 4 hours for attorney Mueller, and 6 hours for attorney Parekh is warranted at their respective hourly rates, resulting in a total reduction of \$9,450.00.

Moreover, the Court finds that the estimated and anticipated time attributed to preparation of the instant fee motion and Cross-Defendants' reply in support of it is also facially excessive in light of the issues presented by the fee motion and the lack of evidence distinguishing the work each attorney conducted in connection with this motion, as well as the time attributed by each of them to this work. (Brent Decl. ¶ 9; Mueller Decl. ¶ 9; Parekh Decl. ¶ 9.) Thus, the Court finds that a reduction of 3 hours from the time of each attorney is warranted at their respective hourly rates, resulting in a total reduction of \$4,950.00.

The Court otherwise finds that Cross-Defendants' counsel's declarations reflect hours of work that were reasonably expended and shall only reduce the attorney fees sought for counsel in the total amount of \$32,425.00, which reflects the sum of the reductions set forth above.

Thus, the request for attorneys' fees is granted in the reduced amount of \$80,400.00.

3. Lodestar Multiplier

Cross-Defendants also seek a fee enhancement in the form of 2.0 multiplier applied to the underlying attorney fee amount requested. However, there is no indication that the anti-SLAPP motion so complex or presented challenging or novel legal issues to merit a fee enhancement over and above the rates claimed. As to the inherent risks posed by the contingent nature of the representation, the Court notes that any contingency risk factor is already accounted for in the hourly rates, which the Court has found to be reasonable. (See, e.g., *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1333 ["Where, as here, the court determines that the lodestar itself constitutes a reasonable fee for the action at issue, no enhancement is warranted."].)

Thus, the request for a fee enhancement is denied.

C. Costs and Expenses

Cross-Defendants seek to recover \$3,678.83 in costs. As Cross-Complainant does not appear to challenge any of the costs sought by Cross-Defendants, and as the costs do not appear to be improper on their face, the Court shall award the requested costs in full.

Thus, the request for costs is granted in the amount of \$3,678.83.

RULING

Cross-Defendants David Mallchok and Shelley Mallchok's Motion for Attorney Fees and Costs is GRANTED IN PART in the amount of \$80,400.00 in reduced attorney fees and \$3,678.83 in recoverable costs, totaling \$84,078.83 for the combined fees and costs incurred by their counsel in both the instant action and the Related Action. Accordingly, the Court shall

apportion half of the awarded amount of \$84,087.83 to Cross-Defendants David Mallchok and Shelley Mallchok, resulting in an award of fees and costs of \$42,043.91.